



File No.: EXP202300777

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 13, 2022, a complaint was filed with entry registration number REGAGE22e00056932199 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial calls on line ***PHONE.1 on December 12, 2022. The receiving line has been registered in the Robinson List since August 28, 2019.

Along with the notification, the following is provided:

- Screenshots from the mobile phone of the received calls.
- Recordings of the received calls.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the said complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on January 30, 2023, as evidenced by the acknowledgment of receipt in the file.

No response was received within the deadline for this forwarding letter.

On March 22, 2023, a late response was received by this Agency indicating that

“regarding the originating numbers of the calls, it claims that it is not the owner of the geographic number, and that it is the owner of the mobile number but that ‘Regarding the number ***PHONE.2, which appears associated with Vodafone, it has been verified, after an exhaustive investigation in its internal systems, that this number does not appear in our database of telephone numbers used by our collaborators to make solicitation calls. Furthermore, this number is not associated with the commercial activity carried out by Vodafone internally.’”

THIRD: On March 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

Verification of the existence of the calls:

The complainant claims to have received two commercial offer calls on behalf of the company Vodafone on December 12, 2022, from the following originating numbers - start time - duration:

- ***PHONE.3 - 13:47 - 4' 32"
- ***PHONE.2 - 13:55 - 1' 52"

In response to the request of March 28, 2023, ORANGE SPAGNE, S.A.U., operator of the destination number, confirmed the receipt of both calls (REGAGE23e00023728175).

Verification of the ownership and origin of the call from the number ***PHONE.2:

Consulting the CNMC registry, the ownership of the line corresponds to the complained party.

On March 29, 2023, a request was sent to the complained party to provide information about the ownership and execution of the call, which was answered late (May 11, REGAGE23e00030131690).

In its response, it claims that “After carrying out the necessary checks in the internal systems of my

represented party, it has been verified that the telephone line ***PHONE.2 is assigned to Vodafone. Furthermore, it has been confirmed that it is not used by Vodafone or its collaborators to make solicitation or commercial calls. However, it is indeed an internal and temporary number generated by Vodafone, whose purpose is to provide a backup service in case of loss of coverage during a call. That is, if the user in a...

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At the given moment, if there is no coverage, the system connects to another connection point that emits a better signal. For this, it is necessary to assign a different temporary number to the calling line, which allows the new connection point to recognize the terminal from which the call is made. In no case does the numbering make calls; it is only used as temporary support in situations of loss of coverage.

After investigating the use of temporary numbers in situations of user coverage loss, the explanation provided regarding the use of the numbering is not satisfactory.

On June 7, 2023, a new request for information is sent to the defendant party, which responds late (June 26, REGAGE23e00041315189).

In its response, it claims that “As indicated by this Agency, the number ***TELÉFONO.2 is a HON (in English, 'Handover number'). It is a provisional number temporarily assigned to a mobile station that moves between radio areas. It is used to allow the continuity of the call in customer mobility scenarios. However, Vodafone has not used this numbering for handovers since 2014, nor is it assigned to any customer. Notwithstanding all of this, Vodafone keeps the numbering reserved in case it may need it in the future.”

It presents a list of the reserved numbers for the aforementioned use:

The defendant party provides technical references that justify the use of additional numbers in case of loss of coverage, not by users but by the company's mobile stations, resulting in this clarification being satisfactory.

However, since the mentioned numbering is not included in the list provided by the company, on June 27, a new request for information is sent to the defendant party, which responds late (July 18, REGAGE23e00048544109).

In its response, it claims that “As indicated by the Agency, the number ***TELÉFONO.2 is not among the ranges currently used by my represented party to provide the handover service. However, this line is kept reserved for this purpose, not being granted or used for other purposes.”

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And also, as it did in the previous response, that “Considering this fact, it is very likely that the complainant has been a victim of fraud through the technique of phone spoofing which, as this Agency is already aware, is a way to mask the identity of companies or individuals by changing the number that appears on the caller ID, thus using the modified number to make it seem as if another company or person is calling.”

Based on the information obtained, it has not been possible to determine the origin of the call made from the number ***TELÉFONO.2.

Verification of the ownership and origin of the call from the number ***TELÉFONO.3:

Consulting the CNMC registry, the number belongs to the entity COLT TECHNOLOGY SERVICES, S.A.U.

In response to requests dated March 29 and April 21, 2023, COLT TECHNOLOGY responds (REGAGE23e00029895375) that the ownership of the number corresponds to the company

GLOBTELECOM 2000 S.L.:

(...)

GLOBTELECOM 2000 S.L. has not responded to the request sent on May 11, 2023, electronically (rejected due to expiration on May 22), with a reiteration on May 23 by postal mail to the address mentioned in COLT TECHNOLOGY's response, which matches the one certified by the Tax Agency, and which was returned as unknown recipient. The documents "Expiration Notification Electronic GLOBTELECOM 2000", "RESPONSE FROM THE AEAT", and "Return Postal Notification GLOBTELECOM 2000" are associated with the file.

Due to the lack of response from the entity identified as the owner, a new request is sent (June 7) to COLT TECHNOLOGY SERVICES, S.A.U. to provide the contract for the line. The company first provides a contract that does not include the line number; in response to the request to remedy the lack of information (June 26), it responds (REGAGE23e00048657140):

(...).

A request is sent (July 20) to A.A.A., the owner of the OSTERISK brand, who responds (REGAGE23e00049482531) that "the number ***TELÉFONO.3 was contracted on September 15, 2022, by the company TINJATECH SERVICES, located at ***DIRECCIÓN.1. The number was canceled on January 31, 2023," and confirms the making of the call on December 12, 2022, at 1:48 PM to the number of the complainant, lasting 272 seconds.

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On July 26, a request for information was sent to the company TINJA TECH SERVICES in Tangier (Morocco) via international certified mail, but as of the date of writing this report, no response has been received.

On July 31, a new request was sent to A.A.A. to provide copies of the contracts for the numbering from the transferring operator to the receiving operator, the postal address of the recipient, and the call log from the latter to the numbering of the claiming party.

A.A.A. responds (July 31, REGAGE23e00051994056):

- that it acquired the numbering ***PHONE.3 from the company "GREEN SERVICES SL"
- that it requested the cancellation of several numbers from that company (provides email dated January 31), among which is the numbering ***PHONE.3:

(...).

- provides a list of calls made by the company that contracted it (TINJA TECH SERVICES) to the numbering +34***PHONE.1. In the provided list, there is a call on December 12, 2022, from the numbering ***PHONE.4 with a duration of 4'32"; the rest of the calls are from other dates and have durations between 2" and 11". It indicates that it does not have contracts for the numbers; provides other contact details (a name, phone number, and non-corporate email) with TINJA TECH SERVICES:

(...).

After verifying its registration as a telecommunications operator with the CNMC, a request was sent (August 7) to GREEN SERVICIOS 2007 S.L. to prove the ownership of the line on the specified date, as well as, if applicable, the transferring and receiving companies of the numbering.

GREEN SERVICIOS S.L. responds (August 13, REGAGE23e00055041176) that:

- The owner of the line is A.A.A. since September 15, 2022.
- It contracted the range of numbers ***PHONE.5 to ***PHONE.6 from "Colt Technology Services Group Limited." Provides a screenshot from September 15, 2022:

(...).

There is a contradiction between the operator that COLT TECHNOLOGY SERVICES claims to be the client of the line ***PHONE.3 and the one that A.A.A. claims to be the provider (respectively, GLOBTELECOM 2000 and GREEN SERVICIOS 2007).

The possibilities are:

COLT

->
GLOB
->
XXXXX
->
TINJA
or
COLT
->
GREEN
->
XXXXX
->
TINJA

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However, GREEN SERVICIOS 2007 presents a screenshot that links the contracting of the line with COLT TECHNOLOGY SERVICES. Furthermore, A.A.A. states that it contracted that line with GREEN SERVICIOS, and provides a copy of an email requesting the cancellation of the contract for that numbering, while COLT TECHNOLOGY SERVICES does not provide any document that complements its statement and GLOBTELECOM 2000 has not responded to the requests, so it can be deduced that the sequence of holders of the numbering ***PHONE.3 is:

COLT TECHNOLOGY SERVICES S.A.U -> GREEN SERVICIOS 2007 S.L. -> A.A.A. -> TINJA TECH SERVICES.

It is noteworthy that:

- COLT TECHNOLOGY SERVICES is listed in the CNMC operator registry as the holder of the numbering ***PHONE.3.
- The operators COLT TECHNOLOGIES SERVICES, GREEN SERVICIOS 2007, and A.A.A. have acknowledged the purchase and resale of the numbering, but none of them has provided a valid contract for it.
- There are contradictions between the statements made by the aforementioned operators. COLT TECHNOLOGY SERVICES has stated several times in its responses that it resold the numbering ***PHONE.3 to GLOBTELECOM 2000, but does not provide documentation to prove it. However, the statements and documents provided by GREEN SERVICIOS 2007 and A.A.A. indicate that it was GREEN SERVICIOS 2007 that acquired the numbering from COLT TECHNOLOGY SERVICES and then resold it to A.A.A.
- The entity TINJA TECH SERVICES (in Morocco) has not responded to the information requests sent.
- The entity GLOBTELECOM 2000 S.L. has not responded to the information requests sent.

Based on the information obtained, it has not been possible to determine the origin of the call from the numbering ***PHONE.3.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and in accordance with the provisions of Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final Provision Sixth, Section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into effect within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations carried out by this Agency, it has not been possible to determine the origin of the call from the number ***PHONE.2, as the party complained against, the holder of the number, denies having made it. It is very likely that the complainant has been a victim of fraud through the technique of "phone spoofing" (which is a way of masking the identity of companies or individuals by changing the number that appears on the caller ID using a modified number to make it seem as if another company or person is calling).

Regarding the call from the number ***PHONE.3, the origin of the call could not be determined despite multiple requests for information sent to several of the involved operators and not having received a response from any of them. The receipt of the calls is confirmed as it has been acknowledged by the operator of the complaining party.

Thus, as it has not been possible to attribute responsibility for the making of the calls and in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complaining party. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the

Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

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